

Dr. M.G.R. Medical University, Tamil Nadu, Employees Conduct Statutes

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Dr. M.G.R. Medical University, Tamil Nadu, Employees Conduct Statutes

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Dr. M.G.R. Medical University, Tamil Nadu, Employees Conduct Statutes

Rule DR-M-G-R-MEDICAL-UNIVERSITY-TAMIL-NADU-EMPLOYEES-CONDUCT-STATUTES of 1990

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Dr. M.G.R. Medical University, Tamil Nadu, Employees Conduct Statutes

Received the assent of the Chancellor, communicated in the D.O. Letters No. 8040/U2/90, dated 22nd June 1990 and dated 31st July 1990 of the Secretary to the Governor of Tamil Nadu.

In exercise of the powers conferred by Section 42 of the Dr. M.G.R. Medical University, Chennai, Act, 1987 (Tamil Nadu Act

37 of 1987

), the Governing Council of the Dr. M.G.R. Medical University, Chennai, hereby makes the following statutes.

1.

Short title, commencement and application.

(a)

These statutes may be called the Dr. M.G.R. Medical University, Chennai, Employees Conduct Statutes.

(b)

They shall come into force from the date of assent of the Chancellor;

(c)

They shall apply to all persons appointed by the University except the part-time employees.

2.

Definitions.

- In these statutes, unless the context otherwise requires,-

(a)

"Act" means the Dr. M.G.R. Medical University, Chennai, Act, 1987, (Tamil Nadu Act 37 of 1987

), as amended from time to time;

(b)

"Authority" means any authority of the University as provided in the Act;

(c)

"Employee" means person appointed in the University of both sexes of teaching, research and non-teaching departments of the University;

(d)

"Governing Council" means the Governing Council of the University;

(e)

"Member of the family" in relation to the employee includes-

(i)

the wife or husband as the case may be of the employee, whether residing with the employee or not but does not include a wife or husband, as the case may be, separated from the employee by a decree or order of a competent Court;

(ii)

son or daughter or step-son or step-daughter of the employee and wholly dependent on him but does not include child or step-child who is no longer in anyway dependent on the employees or of whose custody the employee has been deprived by or under any law for the time being in force; and

(iii)

any other person related, whether by blood or marriage to the employee or to the employees wife or husband and wholly dependent on the employee;

(f)

"University" means the Dr. M.G.R. Medical University, Chennai.

3.

Integrity and devotion to duty.

(1)

Every employee of the University shall at all times -

(a)

maintain absolute integrity;

(b)

maintain devotion to duty;

(c)

conform to and abide by the statutes regulating conditions of service;

(d)

comply with and obey all lawful orders and directions in the course of his official duties issued by any person or persons to whom he may be subordinate in the service of the University; and

(e)

refrain from any activity which is anti-secular or which tends communal disharmony.'

Explanation. - Failure to perform his academic duties such as preparation, lectures, demonstrations, assessment,

guidance invigilation will constitute improper conduct in respect of a member of teaching department. Failure to obey the instructions given by the superior officers or to execute promptly the administrative responsibilities will constitute improper conduct in respect of all employees.

(2)

The conduct and functioning of all those paid out of University funds shall be brought under the purview of the Director of Vigilance and Anti Corruption constituted by the Government of Tamil Nadu. The Registrar/Vice-Chancellor will be the authority to make requisition for a preliminary enquiry and order a detailed enquiry by the Director of Vigilance and Anti-Corruption in respect of C and D groups and A/B Groups respectively. In the case of the Vice-Chancellor no preliminary enquiry shall be made by the Director of Vigilance and Anti-Corruption, without a specific order of the Chancellor.

4.

Interest of the University.

- Every employee shall serve the University honestly and faithfully and shall endeavour his utmost to promote the interests of the University. He shall show courtesy and attention in all transactions and not do anything which is unbecoming of an University employee.

5.

Employment in firms enjoying University Patronage.

- No employee shall use his position or influence directly or indirectly to secure employment for any member of his family in any private business or firm where he has official dealings.

6.

Taking part in elections.

(1)

No employee shall canvass or otherwise interfere with or use his influence in connection with or take part in an election to any legislature or local authority, provided that-

(i)

an employee qualified to vote to such an election may exercise his right to vote; and

(ii)

an employee shall not be deemed to have contravened the provision in this statute by reason only of that he assists in the conduct of an election in due performance of a duty imposed on him or by or under any law for the time being in force.

(2)

No University employee shall associate or take part actively or otherwise in politics. The Governing Council's decision on this aspect of an employee's conduct shall be final.

(3)

No member of staff can contest an election without the specific sanction of the Governing Council. The Governing Council has powers to prescribe conditions in granting such permission or rejecting the requests.

7.

Joining of Associations.

- (i) No employee shall join or continue to be a member of an Association/Union which is not recognized by the University, the objector activities of which are prejudicial to the interests of the sovereignty and integrity of India, security of the state or to the interests of the University or to Public order or morality;

(ii)

No employee shall be a member/office bearer of an Association or Union of the University in respect of a category of staff to which he does not belong;

(iii)

No employee shall be a member or office bearer of an Association or Union of the University in which any person other than the employee of the University is an office bearer or member, as the case may be; and

(iv)

No employee shall, while seeking election to an office of an Association or Union of the University, employ outsiders who are not employees of the University for purposes of canvassing in such elections.

8.

Demonstrations and strikes.

- No employee shall-

(a)

engage himself or participate in any demonstration which is prejudicial to the interests and the sovereignty and integrity of India, security of the State, the interests of the University, Public sector, decency or morality or which involves contempt of Court, defamation or incitement to an offence including inciting students or employees against other students or employees, University or administration; or

(b)

resort to or in any way abet any form of strike, or coercion or physical duress in connection with any matter pertaining to his service or the service of any other employee or employees of the University.

9.

Connection with press or radio or television.

(a)

No employee shall, except with the previous sanction of the University, own wholly or in part, conduct or participate in the editing or management of any newspaper or other periodical publication;

(b)

No employee shall, except with the previous sanction of the University or except in bona fide discharge of his audits;

(i)

publish a book himself or through a publisher or contribute on an article to a book or compilation of articles; or

(ii)

participate in a radio or television broadcast or contribute an article or write a letter to the newspaper or periodical either in his own name or anonymously or pseudonymously or in the name of any other person except when such publication or radio or television broadcast or contribution or publication or public utterance shall not have the effect of an adverse criticism of any current or recent policy or action of the University or which is capable of embarrassing the relationship between the University and the Government or other agencies.

The provision will not apply to any statement made or views expressed by him in his official capacity in due performance of duties assigned to him;

(c)

An employee of the University except in accordance with any general or special order of the University or in the performance in good faith of the duties assigned to him, shall not communicate directly or indirectly any official document or information to any employee or to any other person to whom he is not authorized to communicate such document or information;

(d)

An employee of the University shall not except with the sanction of the University give evidence in connection with any enquiry conducted by any person, committee or authority other than the Courts and Police.

10.

Collection of funds.

- No employee shall except with the previous sanction of the University ask for and accept contributions to or otherwise associate himself with the raising of any funds or other collection in cash or kind except in aid of the registered organisations.

11.

Gifts.

(a)

No employee shall accept or permit any member of his family or an person acting on his behalf of accept any gift except gifts of a value not exceeding Rs. 400 (rupees four hundred only).

(b)

On occasions such as weddings, anniversaries, funerals or religious when the making of a gift is in conformity with the prevailing practice or in other cases in accordance with the laws, an employee may accept gifts from his relatives; Provided that the employee be requested to obtain and produce evidence for the gift tax paid by the donee for the gifts of value exceeding Rs. 20,000 (rupees twenty thousand only).

(c)

In any other case, an employee shall not accept any gift without the sanction of the University if the value thereof exceeds one half of the monthly emoluments of the employee.

12.

Private trade or employment.

(a)

No employee shall except with the previous sanction of the University engage directly or indirectly in any trade or business or undertake any other employment;

(b)

A person employed in the University shall not apply for private employment or signify his willingness to accept such employment without first obtaining the permission in writing of the University;

(c)

It shall be the duty of the employee to inform the University the trade or business or such other thing as the case may be in which any member of the family of the employee is engaged.

13.

Immovable property.

- No employee of the University shall except after notice to the Registrar of the University acquire or dispose of any movable/ immovable property by lease, mortgage, purchase, sale, gift, exchange or otherwise either in his own name or in the name of the members of his family.

14.

Canvassing of outside influence.

- No employee shall bring or attempt to bring any political, personal or other influences to bear upon any authority of the University to further his interests or the interest of any other person in respect of matters pertaining to his service or in respect of any other matter involving a benefit to him.

15.

Partiality in official duties.

- No employee shall be partial in the performance of his official duties and he should be objective in his approach.

16.

Raising of privileges.

- An employee shall not try to use the considerations of Caste, Creed, Religion, Race or Sex in his relationship with his colleagues, for purposes of improving his prospects.

17.

Intoxicating drink and drugs.

(a)

An employee shall strictly abide by any law relating to intoxicating drinks or drugs in force;

(b)

An employee shall not have in his possession any intoxicating drinks or drugs or be in a state of intoxicating in the University premises.

18.

Sending representations and acceptance of foreign assignments etc.

(1)

An employee shall not make representations to Governing Council or Government or to any authorities of the University directly. All representations shall be made through the proper channel. Any such representation shall be forwarded to the person to whom it is addressed with or without comment of the forwarding authority.

(2)

No employee shall have direct correspondence with foreign Universities either for collaboration purposes or for financial assistance. Such correspondences shall be preferred only through the University. It shall be the duty of the employee to inform the University, the fact of receipt of invitations by him from foreign agencies in connection with temporary visits, assignments or training programmes, as the case may be irrespective of the fact whether he accepts such invitations or not. The employee shall not accept such invitations without obtaining the consent of the Vice-Chancellor or the Governing Council, in writing as the case may be.

19.

Bigamous marriage.

- (1)
(i)
No employee shall, enter into or contract, a marriage with person having a spouse living; and'
(ii)

No employee having a spouse living shall enter into or contract a marriage with any person :

Provided that the University may permit an employee to enter into or contract, any such marriage as is referred to in clause (i) or clause (ii) if they are satisfied that-

- (a)
such marriage is permissible under the personal law applicable to such employee and the other party to the marriage;
and
(b)
there are other grounds for so doing;

(2)
No employee shall involve himself in any act involving moral turpitude on his part including any unlawful act, which may cause embarrassment or which may bring discredit to the University.

20.
Obtaining of no objection certificate before applying for passport or under taking any foreign trip.

- No employee shall, except after obtaining "No Objection Certificate" from the University apply for grant of passport or undertake trip to foreign country. While applying for such "No Objection Certificate" information regarding the purpose of the visit, the duration of stay, and the names of countries proposed to be visited should be furnished.

21.
Consulting Medical Practitioner for the purpose of obtaining leave.

- It shall be the duty of the employee who consults a Medical Practitioner with a view to obtaining leave or an extension of leave on medical certificate to disclose to that practitioner the fact of his having consulted any other Practitioner for the same purpose and the result of such consultation. Omission on the part of any employee to do this or any false statement made by him to a Medical Practitioner in this respect shall entail serious departmental action.

22.
Recommendation.
- No employee shall except by endorsement on a written application submitted by a candidate officially through him, recommend to any selecting, appointing or promoting authority or to any individual who is a member of any such authority or of its staff any candidate for any post in the service of the University.

23.
Purchase of resignation.
- Employees are prohibited from entering into any pecuniary arrangement for the resignation by one of them of any office under the University for the benefit of the others. Any University nomination or appointment consequent upon such resignation shall be cancelled and such parties to the arrangements as are still in the service shall be suspended, pending the orders of the University.

24.
Refusal to receive pay.
- Concerted or organized refusal on the part of the employees to receive their pay shall constitute improper conduct.

25.
Interpretation.
- If any question arises relating to the interpretation of these statutes, it shall be referred to the Governing Council, whose decision thereon shall be final.

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